54

The Rule of Law

While these are all no doubt positive developments in individual acts of atonement, what will ultimately help secure societies across the world that are free from the whims of those who would wish to suppress the inalienable rights and freedoms of mankind will be to ensure that the wrongs of the past are not repeated. Two examples suffice. First, it is important that those being tried for acts of terrorism are not denied the full protection of regular law as Bhagat Singh was. The rule of law is not an imaginary land out of the reach of those accused of the most serious crimes, and cases of terrorism are still subject to the due process of law. Khalid Sheikh Mohammed, the accused Al-Qaeda mastermind of the 11 September 2001 attacks detained in Guantanamo, is facing the death penalty. In a lawsuit filed by victims seeking damages from Saudi Arabia, he has indicated a willingness to cooperate with the authorities, provided that the United States does not seek capital punishment against him. In 2003, he was subjected to waterboarding by the CIA no less than 183 times. This was personally authorized by former US President George W Bush.[1]

In the summer of 2019, a military judge set a trial date for Khalid Sheikh Mohammed with four other men, which would be held at Guantanamo. It is now twenty years after these unspeakable atrocities were committed in September 2001, and there have already been more than thirty pre-trial hearings and endless procedural arguments, with proceedings moving at the pace of a tortoise. During this time, witnesses have died, lawyers have grown old and victims' families have seen their patience unreasonably tested. Yet, although Barack Obama tried to close the prison on Guantánamo Bay, his successor Donald Trump pledged to 'load it up with